

Justification and Approval – Simplified Acquisition under \$250,000

FACTS SUPPORTING A REQUEST TO ENTER INTO AN ACQUISITION USING OTHER THAN FULL AND OPEN COMPETITION – SIMPLIFIED ACQUISITION (UNDER \$250,000)

REQ No.: 7177876	Requestor: Dr. Farran Briggs
Office Code: NEI	Phone No.: (301) 480-2764

Introduction: Pursuant to Federal Acquisition Regulation 13.106-3(b)(3)(i), the following data is furnished to the Contracting Officer to support the requisitioning office's request that the items/services identified on the above-mentioned Requisition be obtained using other than full and open competition. The requisitioning office understands that a contract may not be awarded on a sole source/brand name only basis unless the Contracting Officer approves Other than Full and Open Competition.

1. Identification of the Agency: **HHS/NIH/NEI/LSR**
2. Nature and or/description of the action being approved: **Brand Name**
3. Description of the supplies and services required to meet the Agency's needs:

*The Briggs LSR lab aims to discover how individual neurons and larger ensembles of neurons involved in circuits connecting visual cortical and subcortical areas contribute to visual perception. These experiments require computerized systems to design and display visual stimuli and to control experiments in real time. Only a few companies manufacture visual stimulus design/display and experimental control systems with accurate timing and graphics precision. Cambridge Research Systems Limited (NIH vendor ID **1281203**) is the leader in this area.*

The Briggs LSR lab will have 3 "rigs" to perform such visual stimulation experiments. Each rig requires a visual stimulation/experimental control system. This quote is for the components for three identical visual stimulation/experimental control systems (1 per rig) manufactured by Cambridge Research. Each system includes multiple parts (computers, displays, cables) that are not portable between rigs. A single calibration unit is portable between rigs so just one such unit is requested. Another advantage of Cambridge Research is that they manufacture high-quality, state-of-the-art systems that last many years and they provide ongoing support for the systems as well as programming assistance.

4. Proposed contractor's unique qualifications:
 - a. **Replacement parts:** *Data available are not adequate to assure that these parts, if procured from another manufacturer, will perform the same function in the*

equipment/system as the parts to be replaced. Further, drawings or specifications sufficient to obtain competition are not available. Visual stimulation/experimental control systems made by other manufacturers do not provide the timing and graphics precision required for our experiments. Thus, the optimization of the Cambridge Research systems for our research purposes is unique to Cambridge Research.

- b. **Equipment upgrade/repair:** Dr. Briggs' current visual stimulus design/experimental control systems are all made by Cambridge Research, thus we want to make sure our work going forward seamlessly dovetails with our current work. Cambridge Research guarantees the effectiveness of their systems and extensive customer support is included in the purchase of these systems.*
- c. **Proprietary data:** Only Cambridge Research can provide the follow-on service and maintenance because of proprietary data.*
- d. **Brand Name only:** There are ~2 competing manufacturers of visual stimulation design/display and experimental control systems that would support my research by producing the graphics control we need. Cambridge Research is a leader in the market based on quality and support. I have used Cambridge Research systems since 2011 (many of my original systems are still working perfectly after 14 years). I want to continue using Cambridge Research visual stimulation/experimental control systems based on my familiarity with the equipment and Cambridge's customer support. These systems last a long time and synchronize with the other components of my recording rigs. My lab staff have worked with the same equipment for many years. Furthermore, Cambridge Research's newest systems are compatible with new LCD monitors, meaning that the technology will be current for years to come.*

5. Additional Supporting Facts:

- a. **Manufacturer only sells directly and there are no resellers.***

I hereby certify that the supporting data above forms the basis for this justification and is complete and accurate to the best of my knowledge and belief.

Certification by Requirements\Technical Personnel:

 _____ 1/30/2025 _____

I concur and approve of this justification for other than full and open competition.

Contracting Officer

Date